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Attorney for Petitioner, Doris Shum_

DEPARTMENT: 204
Hearing: 04/02/2025 9:00 am

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

02/05/2025
Clerk of the Court
BY: GLORY-ASHLEY BALUYUT
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO_

ESTATE OF GIGI KA MING SHUM Decedent	**CASE NO. PES-24-307304** **PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING, AND, FOR ALLOWANCE OF STATUTORY / ATTORNEYS' FEES** **Hearing Date:** **Time:** **Dept:**

DORIS SHUM, Administrator of the Estate of GIGI KA MING SHUM, ("Decedent"), hereby submits this as her Petition for Final Distribution on Waiver of Accounting and for Statutory Allowance of Attorneys' Fees (this "Petition"), alleging as follows:

1. Jurisdictional Facts

Decedent died intestate on December 19, 2023, in the City and County of San Francisco, State of California. At the time of her death, Decedent was a resident of the City and County of San Francisco, State of California.

2. Accounting

Petitioner is the sole beneficiary of the estate and hereby waives the requirement of an accounting. Decedent's brother, Sidney W. C. Shum, as heir at law, waived notice and disclaimed any interest in the estate.

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3. Appointment of Personal Representative; Issuance of Letters to Petitioner

Pursuant to the Order for Probate signed and filed on June 4, 2024, Petitioner was granted authority by order of this Court to administer Decedent's estate (the "Estate") without Court supervision under the Independent Administration of Estates Act with full authority. Letters of Administration were issued on June 4, 2024. At all times since issuance of the letters, Petitioner has been and now is duly qualified as the personal representative of the Estate. Bond was waived by the only other possible beneficiary.

4. Independent Actions Taken With Notice of Proposed Action

Administrator has taken no other action requiring a Notice of Proposed Action.

5. Publication

Notice of Death and Petition to Administer Estate has been published for the period and in the manner prescribed by law, the first publication being made on May 15, 2024. Within thirty days after the completion of publication, that is, on May 24, 2024, there was filed with the Clerk of this Court an affidavit showing the publication in the manner and form required by law.

6. Notice to Creditors and Expiration of Claims Period

More than four months have elapsed since the issuance of Letters. Reasonable efforts were made to identify creditors of the Estate and Notice of Administration has been sent to all known creditors of the Estate. The time for filing and presenting creditor's claims has expired. Such notice was given more than 30 days before the filing of the Petition herein.

7. Notices to Public Entities

Other than taxes or creditor claims otherwise addressed in this Petition, Petitioner has no reason to believe that any public entity listed in Probate Code Section 9201 has any basis for making a claim against the Estate.

The Notice required by Probate Code Section 9202(a) was given to the Department of Health Care Services ("DHCS") on July 26, 2024 with a copy of Decedent's death certificate. DHCS responded by letter dated August 26, 2024 that there is no Estate Recovery Claim at this time.

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Notice to the Director of the California Victim Compensation and Government Claims Board is not required by Probate Code Sections 216 and 9202(b) because neither the personal representative nor the Estate attorney for the personal representative knows that an heir or beneficiary is or has previously been confined in a prison or facility under the jurisdiction of the Department of Corrections and Rehabilitation or confined in any county or city jail, road camp, industrial farm, or other local correctional facility. The director of the board shall have four months after that notice is received in which to pursue collection of any outstanding restitution fines or orders.

The Notice required by Probate Code Section 9202(c) was given to the California Franchise Tax Board on July 26, 2024. No claim has been filed by the California Franchise Tax Board.

8. Creditor's Claims

A Creditor's Claim was filed for decedent's unpaid ambulance services in the amount of $1,733.34 by the City and County of San Francisco on August 19, 2024. Petitioner paid the $1,733.34. The City and County of San Francisco have filed an Acknowledgement of Satisfaction of Creditor Claim with the court on January 6, 2025.

9. Status of Estate

The Estate is solvent. Petitioner has performed all duties required of her as Administrator of Decedent's Estate. Petitioner has paid all debts of Decedent and the Estate and all expenses of administration except for compensation for statutory attorneys' fees. All debts of Decedent and of the Estate have been paid. The Estate is now in a condition to be closed.

10. Taxes

No federal or California estate taxes are payable and no return will be filed as the Estate is not of sufficient size to require such return.

All California and federal income taxes for 2023 have been filed and paid.

No real or personal property taxes are due or payable by the Estate.

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11. Request for Special Notice

A Request for Special Notice was filed by City and County of San Francisco on August 19, 2024. The City and County of San Francisco filed a Withdrawal of Request for Special Notice on January 6, 2025.

No other party has filed a Request for Special Notice.

12. Inventory

An Inventory and Appraisal ("I & A") was filed on September 3, 2024, showing a date of death value of $540,000.00. Petitioner alleges that the I & A contains all the assets of Decedent's Estate that have come to Petitioner's knowledge or into her possession.

13. Probate Code Section 1064 Allegations

Petitioner alleges that no family or affiliate relationship exists between Petitioner and any agent hired by Petitioner during the period of administration.

The entire property of the Estate is real estate.

14. Distributions

There were no preliminary distributions made:

15. Gifts of Cash or Specific Property

No will was admitted to probate.

16. Statutory Compensation for Attorney and Administrator

Petitioner waives payment of fees for her services. Petitioner has retained the law firm of Leland, Parachini, Steinberg, Matzger, and Melnick, LLP ("Attorneys"), to represent her as administrator, in connection with the administration of the Estate. Attorneys have rendered valuable services to the Estate, and statutory compensation should be allowed.

The statutory Attorney's compensation for services is $13.800.00, computed on the fee base of $540,000.00 (the value reflected on the I & A), was arrived at as follows:

FEE BASE

Inventory and Appraisal	$540,000.00
Total of Estate for Calculation:	**$540,000.00**

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FEE COMPUTATION

4% of the first $ 100,000	$4,000.00
3% of the next $ 100,000	$3,000.00
2% of the next $ 340,000	$6,800.00
Total:	**$13,800.00**

Petitioner hereby requests authorization to pay Attorneys the statutory fee of $13,800 in connection with the administration of the Estate. Fees to pay the attorney will come out of the sale of the property.

17. Compensation Paid During Account Period

No compensation has been paid to Petitioner or to Attorneys during the administration of the Estate.

18. Reserve

No reserve is requested.

19. Statement of Ownership Statement – Death of Real Property Owner

A Change in Ownership Statement - Death of Real Property Owner was filed on October 11, 2024.

20. Change in Form

There were no changes in form.

21. Property

The assets and property of the Estate is Decedent's separate property.

22. Property on Hand

The Estate presently under the control or in the possession of Petitioner consists of a residential condo located at 550 S. Van Ness #208, San Francisco CA 04110; APN: 3570-066.

23. Disclaimer Decedent's brother, Sidney W. C. Shum, disclaimed all interest in the real property of the Estate of Gigi Shum. A copy of that filed disclaimer is attached as Exhibit A.

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Name and Relationship to Decedent	Age	Share of Estate
Doris Shum, Sister	**adult**	**100%**

THEREFORE, Petitioner prays for an order of this Court that:

1. The report of the personal representative be confirmed and approved;

2. All the acts and proceedings of Petitioner as personal representative be confirmed and approved;

3. Statutory fees due Attorneys be paid in the sum of $13,800.00 be paid to Attorneys;

4. Final distributions to be made as follows:

The sole asset of the estate should be distributed to Petitioner, Doris Shum, and is described as a residential condo located at 550 S. Van Ness Avenue #208, San Francisco CA 94110 and described below:

THE LAND REFERRED TO HEREIN BELOW IS SITUATED IN THE CITY AND COUNTY OF SAN FRANCISCO, STATE OF CALIFORNIA AND IS DESCRIBED AS FOLLOWS:

PARCEL A:

Condominium Unit No. 208, Lot 66, as shown upon the Condominium Map and diagrammatic floor plan entitled "Map of 550 South Van Ness Avenue, a Condominium Project Being a Resubdivision of Lot 3, Portion of Assessors Block 3570 San Francisco, California" which was filed for record on December 13, 1991 in Condominium Map Book 35 at pages 39 through 45, inclusive, in the Office of the Recorder of the City and County of San Francisco, State of California (referred to herein as "the Map"), and as further defined in the Declaration of Covenants, Conditions and Restrictions 550 South Van Ness Avenue recorded on December 17. 19991 in Book F523 Page 75 and following, Official Records of the City and County of San Francisco, State of California (referred to here in as "the Declaration").

Excepting therefrom, any portion of the common area lying within said Unit.

Excepting therefrom:

(a) Easements through said Unit, appurtenant to the Common Area and all other Units, for support and repair of the common area an all other units.

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(a) Easements through said Unit, appurtenant to the Common Area and all other Units, for support and repair of the common area an all other units.

(b) Easements, appurtenant to the common area for encroachment upon the air space of the Unit by those portions of the common area located within the Unit.

PARCEL B:

An undivided 2.988% interest in and to the Common Area as shown and defined on the Map, reserving therefrom the following:

(a) Exclusive easements, other than PARCEL III, as designed on the Map and reserved by Grantor to units for use as designed in the Declaration; and

(b) Nonexclusive easements appurtenant to all units for ingress and egress, support, repair and maintenance.

PARCEL C:
(a) The exclusive easement to use the Parking Area(s) designated as P-33 on the Map.

Parcel D:

A nonexclusive easement appurtenant to Parcel A above for support, repair and maintenance, and for ingress and egress through the Common Area in accordance with California Civil Code Section 1361(a).

PARCEL E:

Encroachment easements appurtenant to the Unit in accordance with the provisions of the Declaration.

5. Any portion of the Estate acquired or discovered after this Court order for final distribution, is distributed to Petitioner, Doris Shum.

6. That upon delivering the property and on the filing of receipts, Administrator be discharged and released from all liability to be incurred hereafter; and

7. For such other and further orders as this Court considers proper.

Dated: 01/27, 2025

DORIS SHUM, ADMINISTRATOR

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Dated: 1/27, 2025

LELAND, PARACHINI, STEINBERG, MATZGER & MELNICK, LLP

By: _____
JAMES M. ALLEN, Esq.

VERIFICATION

I, DORIS SHUM, hereby declare:

I am Administrator of the Estate in the above-entitled action. I have reviewed the foregoing **PETITION FOR FINAL DISTRIBUTION AND FOR ALLOWANCE OF STATUTORY ATTORNEYS' FEES** and know the contents thereof. I declare that the matters stated in the foregoing are true of my own knowledge, except as to those matters which are stated on information and belief, and as to those matters I believe them to be true. I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Dated: 01-27, 2025

_____
DORIS SHUM, ADMINISTRATOR

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EXHIBIT A

DISCLAIMER

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Attorney for Doris Shum, Petitioner

ELECTRONICALLY
FILED
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05/10/2024
Clerk of the Court
BY: LESLIE GOMEZ
Deputy Clerk

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Estate of GIGI KA MING SHUM, Deceased	CASE NO: PES-24-307304 **WAIVER OF NOTICE, CONSENT BY SIDNEY W C SHUM TO GRANTING PETITION FOR PROBATE AND APPOINTMENT OF ADMINISTRATOR, AND DISCLAIM ANY INTEREST AS TO ANY REAL PROPERTY IN THE ESTATE**

1. I, SIDNEY W C SHUM, am the brother of GIGI KA MING SHUM, decedent, and am an interested party in this matter.

2. I received and reviewed a copy of the Petition for Probate and Letters of Administration (the "Petition") in this matter.

3. By signing below, I hereby waive notice of the hearing on the Petition for Probate, for the Estate of Gigi Ka Ming Shum.

4. By signing below, I hereby consent to the granting of the Order for Probate and appointing Doris Shum, Administrator for the Estate of Gigi Ka Ming Shum.

/ / /

5. By signing below, I hereby disclaim any interest in real property of the Estate of Gigi Shum.

Executed on 5-3-24, at San Francisco, California.

SIDNEY W C SHUM, Beneficiary

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